

PROPOSED
HOUSE OF REPRESENTATIVES AMENDMENTS TO S.B. 1094
(Reference to Senate engrossed bill)

1 Strike everything after the enacting clause and insert:

2 "Section 1. Title 23, chapter 2, Arizona Revised Statutes, is
3 amended by adding article 8.2, to read:

4 ARTICLE 8.2. FAMILY AND MEDICAL LEAVE

5 23-382. Definitions

6 IN THIS ARTICLE, UNLESS THE CONTEXT OTHERWISE REQUIRES:

7 1. "ABUSE" HAS THE SAME MEANING PRESCRIBED IN SECTION 13-3623.

8 2. "APPLICATION YEAR" MEANS THE TWELVE-MONTH PERIOD BEGINNING ON
9 THE FIRST DAY OF THE CALENDAR WEEK IN WHICH AN INDIVIDUAL FILES AN
10 APPLICATION FOR FAMILY AND MEDICAL LEAVE INSURANCE BENEFITS.

11 3. "AVERAGE WEEKLY WAGE" MEANS ONE-THIRTEENTH OF THE COVERED
12 INDIVIDUAL'S TOTAL WAGES FOR COVERED WORK PAID DURING THE QUARTER OF THE
13 PERSON'S BASE PERIOD IN WHICH SUCH TOTAL WAGES WERE HIGHEST.

14 4. "BASE PERIOD" HAS THE SAME MEANING PRESCRIBED IN SECTION 23-605.

15 5. "COMMISSION" MEANS THE INDUSTRIAL COMMISSION OF ARIZONA.

16 6. "COVERED INDIVIDUAL" MEANS ANY PERSON WHO MEETS ALL OF THE
17 FOLLOWING REQUIREMENTS:

18 (a) MEETS ONE OF THE FOLLOWING:

19 (i) HAS BEEN PAID WAGES FOR COVERED WORK DURING THE INDIVIDUAL'S
20 BASE PERIOD EQUAL TO AT LEAST ONE AND ONE-HALF TIMES THE WAGES PAID TO THE
21 INDIVIDUAL IN THE CALENDAR QUARTER OF THE INDIVIDUAL'S BASE PERIOD IN
22 WHICH THE WAGES WERE HIGHEST, AND THE INDIVIDUAL HAS BEEN PAID WAGES FOR
23 COVERED WORK IN ONE CALENDAR QUARTER OF THE INDIVIDUAL'S BASE PERIOD EQUAL
24 TO AN AMOUNT THAT IS EQUAL TO AT LEAST THREE HUNDRED NINETY TIMES THE
25 MINIMUM WAGE PRESCRIBED BY SECTION 23-363 THAT IS IN EFFECT WHEN THE
26 INDIVIDUAL FILES A CLAIM FOR BENEFITS.

27 (ii) HAS BEEN PAID WAGES FOR COVERED WORK DURING AT LEAST TWO
28 QUARTERS OF THE INDIVIDUAL'S BASE PERIOD AND THE AMOUNT OF THE WAGES PAID
29 IN ONE QUARTER WOULD BE SUFFICIENT TO QUALIFY THE INDIVIDUAL FOR THE
30 MAXIMUM WEEKLY BENEFIT AMOUNT PAYABLE UNDER THIS ARTICLE AND THE TOTAL OF
31 THE INDIVIDUAL'S BASE-PERIOD WAGES IS EQUAL TO OR GREATER THAN THE TAXABLE
32 LIMIT FOR UNEMPLOYMENT INSURANCE AS SPECIFIED IN SECTION 23-622,
33 SUBSECTION B, PARAGRAPH 1.

34 (iii) IS SELF-EMPLOYED, ELECTS COVERAGE AND MEETS THE REQUIREMENTS
35 OF SECTION 23-382.12.

36 (b) MEETS THE ADMINISTRATIVE REQUIREMENTS OUTLINED IN THIS ARTICLE
37 AND IN RULES ADOPTED PURSUANT TO THIS ARTICLE.

38 (c) SUBMITS AN APPLICATION.

39 7. "DIRECTOR" MEANS THE DIRECTOR OF THE COMMISSION.

- 1 8. "DOMESTIC VIOLENCE" HAS THE SAME MEANING PRESCRIBED IN SECTION
2 13-3601.
- 3 9. "EMPLOYEE" HAS THE SAME MEANING PRESCRIBED IN SECTION 23-362.
- 4 10. "EMPLOYER" HAS THE SAME MEANING PRESCRIBED IN SECTION 23-371,
5 EXCEPT THAT AN EMPLOYER ALSO INCLUDES THIS STATE.
- 6 11. "FAMILY AND MEDICAL LEAVE INSURANCE BENEFITS" MEANS THE
7 BENEFITS PROVIDED UNDER THIS ARTICLE.
- 8 12. "FAMILY MEMBER" HAS THE SAME MEANING PRESCRIBED IN SECTION
9 23-371.
- 10 13. "HEALTH CARE PROVIDER" MEANS ANY PERSON LICENSED UNDER FEDERAL
11 LAW OR THE LAWS OF THIS STATE TO PROVIDE MEDICAL OR EMERGENCY SERVICES,
12 INCLUDING DOCTORS, NURSES AND EMERGENCY ROOM PERSONNEL, OR CERTIFIED
13 MIDWIVES.
- 14 14. "QUALIFYING EXIGENCY LEAVE" MEANS LEAVE BASED ON A NEED ARISING
15 OUT OF A COVERED INDIVIDUAL'S FAMILY MEMBER'S ACTIVE DUTY SERVICE OR
16 NOTICE OF AN IMPENDING CALL OR ORDER TO ACTIVE DUTY IN THE ARMED FORCES,
17 INCLUDING ANY OF THE FOLLOWING:
- 18 (a) PROVIDING FOR THE CARE OR OTHER NEEDS OF THE MILITARY MEMBER'S
19 CHILD OR OTHER FAMILY MEMBER.
- 20 (b) MAKING FINANCIAL OR LEGAL ARRANGEMENTS FOR THE MILITARY MEMBER.
- 21 (c) ATTENDING COUNSELING.
- 22 (d) ATTENDING MILITARY EVENTS OR CEREMONIES.
- 23 (e) SPENDING TIME WITH THE MILITARY MEMBER DURING A REST AND
24 RECUPERATION LEAVE OR FOLLOWING RETURN FROM DEPLOYMENT.
- 25 (f) MAKING ARRANGEMENTS FOLLOWING THE DEATH OF THE MILITARY MEMBER.
- 26 15. "RETALIATORY PERSONNEL ACTION":
- 27 (a) MEANS DENIAL OF ANY RIGHT GUARANTEED UNDER THIS ARTICLE,
28 INCLUDING EITHER OF THE FOLLOWING:
- 29 (i) ANY THREAT, DISCHARGE, SUSPENSION, DEMOTION OR REDUCTION OF
30 HOURS OR ANY OTHER ADVERSE ACTION AGAINST AN EMPLOYEE FOR THE EXERCISE OF
31 ANY RIGHT GUARANTEED IN THIS ARTICLE.
- 32 (ii) REPORTING OR THREATENING TO REPORT AN EMPLOYEE'S SUSPECTED
33 CITIZENSHIP OR IMMIGRATION STATUS OR THE SUSPECTED CITIZENSHIP OR
34 IMMIGRATION STATUS OF A FAMILY MEMBER OF THE EMPLOYEE TO A FEDERAL, STATE
35 OR LOCAL AGENCY.
- 36 (b) INCLUDES INTERFERENCE WITH OR PUNISHMENT FOR IN ANY MANNER
37 PARTICIPATING IN OR ASSISTING AN INVESTIGATION, PROCEEDING OR HEARING
38 UNDER THIS ARTICLE.
- 39 16. "SAFE LEAVE" MEANS, NOTWITHSTANDING SECTION 13-4439, ABSENCE
40 NECESSARY DUE TO DOMESTIC VIOLENCE, SEXUAL VIOLENCE, ABUSE OR STALKING, IF
41 THE LEAVE IS TO ALLOW THE COVERED INDIVIDUAL TO OBTAIN FOR THE COVERED
42 INDIVIDUAL OR THE COVERED INDIVIDUAL'S FAMILY MEMBER ANY OF THE FOLLOWING:
- 43 (a) MEDICAL ATTENTION NEEDED TO RECOVER FROM PHYSICAL OR
44 PSYCHOLOGICAL INJURY OR DISABILITY CAUSED BY DOMESTIC VIOLENCE, SEXUAL
45 VIOLENCE, ABUSE OR STALKING.
- 46 (b) SERVICES FROM A DOMESTIC VIOLENCE OR SEXUAL VIOLENCE PROGRAM OR
47 VICTIM SERVICES ORGANIZATION.
- 48 (c) PSYCHOLOGICAL OR OTHER COUNSELING.

1 (d) RELOCATION OR TAKING STEPS TO SECURE AN EXISTING HOME DUE TO
2 THE DOMESTIC VIOLENCE, SEXUAL VIOLENCE, ABUSE OR STALKING.

3 (e) LEGAL SERVICES, INCLUDING PREPARING FOR OR PARTICIPATING IN ANY
4 CIVIL OR CRIMINAL LEGAL PROCEEDING RELATED TO OR RESULTING FROM THE
5 DOMESTIC VIOLENCE, SEXUAL VIOLENCE, ABUSE OR STALKING.

6 17. "SERIOUS HEALTH CONDITION" HAS THE SAME MEANING PRESCRIBED IN
7 SECTION 101 OF THE FAMILY AND MEDICAL LEAVE ACT OF 1993 (P.L. 103-3; 107
8 STAT. 6; 29 UNITED STATES CODE SECTION 2611).

9 18. "SEXUAL VIOLENCE" HAS THE SAME MEANING PRESCRIBED IN SECTION
10 23-371.

11 19. "STALKING" HAS THE SAME MEANING PRESCRIBED IN SECTION 23-371.

12 20. "STATE AVERAGE WEEKLY WAGE" MEANS THE AVERAGE MONTHLY WAGE, AS
13 CALCULATED UNDER SECTION 23-1041, SUBSECTION E, DIVIDED BY 4.5.

14 23-382.01. Eligibility for benefits

15 BEGINNING JANUARY 1, 2029, FAMILY AND MEDICAL LEAVE INSURANCE
16 BENEFITS ARE PAYABLE TO AN INDIVIDUAL WHO BOTH:

17 1. MEETS THE DEFINITION OF COVERED INDIVIDUAL UNDER THIS ARTICLE.

18 2. MEETS ONE OF THE FOLLOWING REQUIREMENTS:

19 (a) BECAUSE OF BIRTH, ADOPTION OR PLACEMENT THROUGH FOSTER CARE, IS
20 CARING FOR A NEW CHILD DURING THE FIRST YEAR AFTER THE BIRTH, ADOPTION OR
21 PLACEMENT OF THAT CHILD.

22 (b) IS CARING FOR A FAMILY MEMBER WITH A SERIOUS HEALTH CONDITION.

23 (c) IS PREGNANT OR RECOVERING FROM CHILDBIRTH OR HAS AN ILLNESS,
24 INJURY, IMPAIRMENT OR PHYSICAL OR MENTAL CONDITION THAT INVOLVES INPATIENT
25 CARE IN A HOSPITAL, HOSPICE OR RESIDENTIAL MEDICAL CARE FACILITY OR
26 CONTINUING TREATMENT BY A HEALTH CARE PROVIDER AND THAT MAKES THE COVERED
27 INDIVIDUAL UNABLE TO PERFORM THE FUNCTIONS OF THE EMPLOYEE'S POSITION.

28 (d) QUALIFIES FOR QUALIFYING EXIGENCY LEAVE ARISING OUT OF THE FACT
29 THAT THE FAMILY MEMBER OF THE COVERED INDIVIDUAL IS ON ACTIVE DUTY OR HAS
30 BEEN NOTIFIED OF AN IMPENDING CALL OR ORDER TO ACTIVE DUTY IN THE ARMED
31 FORCES.

32 (e) IS IN NEED OF SAFE LEAVE.

33 23-382.02. Duration of benefits

34 A. THE MAXIMUM NUMBER OF WEEKS DURING WHICH FAMILY AND MEDICAL
35 LEAVE INSURANCE BENEFITS ARE PAYABLE TO A COVERED INDIVIDUAL IN AN
36 APPLICATION YEAR IS AS FOLLOWS:

37 1. UNDER SECTION 23-382.01, PARAGRAPH 2, SUBDIVISION (c),
38 TWENTY-SIX WEEKS.

39 2. UNDER SECTION 23-382.01, PARAGRAPH 2, SUBDIVISION (a), (b), (d)
40 OR (e), TWENTY-FOUR WEEKS.

41 B. A COVERED INDIVIDUAL IS ELIGIBLE FOR TWENTY-SIX WEEKS OF LEAVE
42 UNDER SUBSECTION A, PARAGRAPH 1 OF THIS SECTION AND TWENTY-FOUR WEEKS OF
43 LEAVE UNDER SUBSECTION A, PARAGRAPH 2 OF THIS SECTION IN AN APPLICATION
44 YEAR.

45 C. IN ADDITION TO THE FAMILY AND MEDICAL LEAVE INSURANCE BENEFITS
46 THAT ARE PRESCRIBED IN SUBSECTION A OF THIS SECTION, AN EMPLOYER:

47 1. MAY PROVIDE ADDITIONAL LEAVE BENEFITS FOR A COVERED INDIVIDUAL.

48 2. SHALL PROVIDE A MINIMUM OF TWELVE WEEKS OF LEAVE TO A COVERED
49 INDIVIDUAL.

1 D. THE FIRST PAYMENT OF BENEFITS MUST BE MADE TO A COVERED
2 INDIVIDUAL WITHIN TWO WEEKS AFTER THE CLAIM IS FILED AND SUBSEQUENT
3 PAYMENTS MUST BE MADE EVERY TWO WEEKS THEREAFTER.

4 23-382.03. Amount of benefits

5 A. THE WEEKLY AMOUNT OF FAMILY AND MEDICAL LEAVE INSURANCE BENEFITS
6 IS DETERMINED AS FOLLOWS:

7 1. IF THE COVERED INDIVIDUAL'S AVERAGE WEEKLY WAGE IS EQUAL TO OR
8 LESS THAN ONE-HALF OF THE STATE AVERAGE WEEKLY WAGE, THE BENEFIT AMOUNT IS
9 EQUAL TO NINETY PERCENT OF THE COVERED INDIVIDUAL'S AVERAGE WEEKLY WAGE.

10 2. IF THE COVERED INDIVIDUAL'S AVERAGE WEEKLY WAGE IS GREATER THAN
11 ONE-HALF OF THE STATE AVERAGE WEEKLY WAGE, THE BENEFIT AMOUNT IS THE SUM
12 OF BOTH OF THE FOLLOWING:

13 (a) NINETY PERCENT OF ONE-HALF OF THE STATE AVERAGE WEEKLY WAGE.

14 (b) FIFTY PERCENT OF THE DIFFERENCE OF THE COVERED INDIVIDUAL'S
15 AVERAGE WEEKLY WAGE AND ONE-HALF OF THE STATE AVERAGE WEEKLY WAGE.

16 B. BEGINNING JANUARY 1, 2029, THE MAXIMUM WEEKLY BENEFIT AMOUNT
17 CALCULATED PURSUANT TO SUBSECTION A OF THIS SECTION IS NOT MORE THAN
18 \$1,000 PER WEEK, EXCEPT THAT ANNUALLY, NOT LATER THAN OCTOBER 1 OF EACH
19 YEAR THEREAFTER, THE COMMISSION SHALL ADJUST THE MAXIMUM WEEKLY BENEFIT
20 AMOUNT TO BE NINETY PERCENT OF THE STATE AVERAGE WEEKLY WAGE AND THE
21 ADJUSTED MAXIMUM WEEKLY BENEFIT AMOUNT SHALL TAKE EFFECT ON JANUARY 1 OF
22 THE YEAR FOLLOWING THE ADJUSTMENT.

23 C. THE MINIMUM WEEKLY BENEFIT MAY NOT BE LESS THAN \$100 PER WEEK,
24 EXCEPT THAT IF THE COVERED INDIVIDUAL'S AVERAGE WEEKLY WAGE IS LESS THAN
25 \$100 PER WEEK, THE WEEKLY BENEFIT SHALL BE THE COVERED INDIVIDUAL'S FULL
26 WAGE.

27 D. FAMILY AND MEDICAL LEAVE INSURANCE BENEFITS ARE NOT PAYABLE FOR
28 LESS THAN EIGHT HOURS OF FAMILY AND MEDICAL LEAVE TAKEN IN ONE WORK WEEK.

29 23-382.04. Contributions

30 A. PAYROLL CONTRIBUTIONS ARE AUTHORIZED TO FINANCE THE PAYMENT OF
31 BENEFITS UNDER THE FAMILY AND MEDICAL LEAVE INSURANCE PROGRAM.

32 B. BEGINNING JANUARY 1, 2028, PAYROLL CONTRIBUTIONS SHALL BE PAID
33 BY EMPLOYERS AND EMPLOYEES IN THE RATIO OF ONE-TO-ONE IN AN AMOUNT TO BE
34 DETERMINED BY THE COMMISSION.

35 C. NOT LATER THAN OCTOBER 1 OF EACH YEAR, THE COMMISSION SHALL FIX
36 THE CONTRIBUTION RATE FOR THE COMING CALENDAR YEAR AS FOLLOWS:

37 1. FOR CALENDAR YEARS 2028 AND 2029, THE COMMISSION SHALL DO SO
38 BASED ON SOUND ACTUARIAL PRINCIPLES.

39 2. FOR CALENDAR YEAR 2028 AND EACH CALENDAR YEAR THEREAFTER, THE
40 COMMISSION SHALL FIRST CERTIFY AND PUBLISH ALL OF THE FOLLOWING
41 INFORMATION:

42 (a) THE TOTAL AMOUNT OF FAMILY AND MEDICAL LEAVE INSURANCE BENEFITS
43 PAID BY THE COMMISSION DURING THE PREVIOUS FISCAL YEAR.

44 (b) THE TOTAL AMOUNT REMAINING IN THE FAMILY AND MEDICAL LEAVE
45 INSURANCE FUND ESTABLISHED BY SECTION 23-382.15 AT THE CLOSE OF THE FISCAL
46 YEAR.

1 (c) THE TOTAL AMOUNT EQUAL TO ONE HUNDRED FORTY PERCENT OF THE
2 PREVIOUS FISCAL YEAR'S EXPENDITURES FOR FAMILY AND MEDICAL LEAVE INSURANCE
3 BENEFITS PAID AND FOR THE ADMINISTRATION OF THE FAMILY AND MEDICAL LEAVE
4 INSURANCE PROGRAM.

5 (d) THE AMOUNT BY WHICH THE TOTAL AMOUNT REMAINING IN THE FAMILY
6 AND MEDICAL LEAVE INSURANCE FUND ESTABLISHED BY SECTION 23-382.15 AT THE
7 CLOSE OF THE PREVIOUS FISCAL YEAR IS LESS THAN OR GREATER THAN ONE HUNDRED
8 FORTY PERCENT OF THE PREVIOUS FISCAL YEAR'S EXPENDITURES FOR FAMILY AND
9 MEDICAL LEAVE INSURANCE BENEFITS PAID AND FOR THE ADMINISTRATION OF THE
10 FAMILY AND MEDICAL LEAVE INSURANCE PROGRAM.

11 (e) THE AMOUNT BY WHICH THE CONTRIBUTION RATE SHALL BE ADJUSTED TO
12 ENSURE THAT THE FAMILY AND MEDICAL LEAVE INSURANCE FUND ESTABLISHED BY
13 SECTION 23-382.15 MAINTAINS OR ACHIEVES AN ANNUALIZED AMOUNT OF NOT LESS
14 THAN ONE HUNDRED PERCENT OF THE PREVIOUS FISCAL YEAR'S EXPENDITURES FOR
15 FAMILY AND MEDICAL LEAVE INSURANCE BENEFITS PAID AND FOR THE
16 ADMINISTRATION OF THE FAMILY AND MEDICAL LEAVE INSURANCE PROGRAM. THE
17 CONTRIBUTION RATE ADJUSTMENT, IF ANY, MADE AS THE RESULT OF THE
18 COMMISSION'S CERTIFICATION AND REPORT UNDER THIS SUBSECTION SHALL
19 SUPERSEDE THE RATE PREVIOUSLY SET FORTH AND SHALL BECOME EFFECTIVE ON
20 JANUARY 1 OF THE FOLLOWING CALENDAR YEAR.

21 D. A SELF-EMPLOYED INDIVIDUAL WHO ELECTS COVERAGE UNDER SECTION
22 23-382.12 IS RESPONSIBLE FOR THE EMPLOYEE SHARE OF CONTRIBUTIONS SET FORTH
23 IN SUBSECTION B OF THIS SECTION ON THAT INDIVIDUAL'S INCOME FROM
24 SELF-EMPLOYMENT.

25 23-382.05. Reduced leave schedule

26 A. A COVERED INDIVIDUAL IS ENTITLED, AT THE OPTION OF THE COVERED
27 INDIVIDUAL, TO TAKE PAID FAMILY AND MEDICAL LEAVE ON AN INTERMITTENT OR
28 REDUCED LEAVE SCHEDULE IN WHICH ALL OF THE LEAVE AUTHORIZED UNDER THIS
29 ARTICLE IS NOT TAKEN SEQUENTIALLY. FAMILY AND MEDICAL LEAVE INSURANCE
30 BENEFITS FOR INTERMITTENT OR REDUCED LEAVE SCHEDULES SHALL BE PRORATED.

31 B. THE COVERED INDIVIDUAL SHALL PROVIDE THE EMPLOYER WITH PRIOR
32 NOTICE OF THE SCHEDULE ON WHICH THE COVERED INDIVIDUAL WILL BE TAKING THE
33 LEAVE, TO THE EXTENT PRACTICABLE. PAID FAMILY AND MEDICAL LEAVE TAKEN
34 UNDER THIS SECTION MAY NOT RESULT IN A REDUCTION OF THE TOTAL AMOUNT OF
35 LEAVE TO WHICH AN EMPLOYEE IS ENTITLED BEYOND THE AMOUNT OF LEAVE ACTUALLY
36 TAKEN.

37 C. THIS SECTION DOES NOT ENTITLE A COVERED INDIVIDUAL TO MORE LEAVE
38 THAN REQUIRED UNDER SECTION 23-382.02.

39 23-382.06. Leave and employment protection; enforcement

40 A. ANY COVERED INDIVIDUAL WHO EXERCISES THE COVERED INDIVIDUAL'S
41 RIGHT TO FAMILY AND MEDICAL LEAVE INSURANCE BENEFITS IS ENTITLED, ON THE
42 EXPIRATION OF THAT LEAVE, TO BE RESTORED BY THE EMPLOYER TO THE POSITION
43 HELD BY THE COVERED INDIVIDUAL WHEN THE LEAVE COMMENCED, OR TO A POSITION
44 WITH EQUIVALENT SENIORITY, STATUS, EMPLOYMENT BENEFITS, PAY AND OTHER
45 TERMS AND CONDITIONS OF EMPLOYMENT, INCLUDING FRINGE BENEFITS AND SERVICE
46 CREDITS, THAT THE COVERED INDIVIDUAL HAD BEEN ENTITLED TO AT THE
47 COMMENCEMENT OF LEAVE.

1 B. DURING ANY LEAVE TAKEN PURSUANT TO THIS ARTICLE, THE EMPLOYER
2 SHALL MAINTAIN ANY HEALTH CARE BENEFITS THE COVERED INDIVIDUAL HAD BEFORE
3 TAKING SUCH LEAVE FOR THE DURATION OF THE LEAVE AS IF THE COVERED
4 INDIVIDUAL HAD CONTINUED IN EMPLOYMENT CONTINUOUSLY FROM THE DATE THE
5 COVERED INDIVIDUAL COMMENCED THE LEAVE UNTIL THE DATE THE FAMILY AND
6 MEDICAL LEAVE INSURANCE BENEFITS TERMINATE, IF THE COVERED INDIVIDUAL
7 CONTINUES TO PAY THE COVERED INDIVIDUAL'S SHARE OF THE COST OF HEALTH
8 BENEFITS AS REQUIRED BEFORE THE COMMENCEMENT OF THE LEAVE.

9 C. THIS SECTION AND SECTION 23-382.07 SHALL BE ENFORCED AS FOLLOWS:

10 1. ON RECEIPT OF A WRITTEN COMPLAINT FROM AN EMPLOYEE, THE DIRECTOR
11 SHALL INVESTIGATE WHETHER THE EMPLOYER HAS VIOLATED THIS ARTICLE.

12 2. IF THE DIRECTOR DETERMINES THAT AN EMPLOYER HAS VIOLATED THIS
13 ARTICLE, THE DIRECTOR SHALL DO ANY OF THE FOLLOWING:

14 (a) WITH THE WRITTEN CONSENT OF THE EMPLOYEE, ATTEMPT TO INFORMALLY
15 RESOLVE ANY PERTINENT ISSUE THROUGH MEDIATION.

16 (b) WITH THE WRITTEN CONSENT OF THE EMPLOYEE, REQUEST THE ATTORNEY
17 GENERAL TO BRING AN ACTION ON BEHALF OF THE EMPLOYEE IN ACCORDANCE WITH
18 THIS ARTICLE.

19 (c) BRING AN ACTION ON BEHALF OF AN EMPLOYEE IN THE COUNTY WHERE
20 THE VIOLATION ALLEGEDLY OCCURRED.

21 3. AN EMPLOYEE MAY BRING A CIVIL ACTION IN A COURT OF COMPETENT
22 JURISDICTION AGAINST THE EMPLOYEE'S EMPLOYER FOR A VIOLATION OF THIS
23 ARTICLE REGARDLESS OF WHETHER THE EMPLOYEE FIRST FILED A COMPLAINT WITH
24 THE DIRECTOR.

25 4. AN ACTION BROUGHT UNDER PARAGRAPH 2 OR 3 OF THIS SUBSECTION
26 SHALL BE FILED WITHIN THREE YEARS AFTER THE OCCURRENCE OF THE ACT ON WHICH
27 THE ACTION IS BASED.

28 5. IF A COURT FINDS THAT AN EMPLOYER VIOLATED THIS ARTICLE IN AN
29 ACTION BROUGHT UNDER PARAGRAPH 2 OR 3 OF THIS SUBSECTION, THE COURT MAY
30 AWARD THE EMPLOYEE ALL OF THE FOLLOWING:

31 (a) THE FULL MONETARY VALUE OF ANY UNPAID FAMILY AND MEDICAL LEAVE
32 THAT THE EMPLOYEE WAS UNLAWFULLY DENIED. UNPAID FAMILY AND MEDICAL LEAVE
33 AWARDED PURSUANT TO THIS SUBDIVISION SHALL BE PAID TO THE EMPLOYEE WITHOUT
34 COST TO THE EMPLOYEE.

35 (b) ACTUAL ECONOMIC DAMAGES SUFFERED BY THE EMPLOYEE AS A RESULT OF
36 THE EMPLOYER'S VIOLATION OF THIS ARTICLE.

37 (c) AN ADDITIONAL AMOUNT OF NOT MORE THAN THREE TIMES THE DAMAGES
38 AWARDED UNDER SUBDIVISION (b) OF THIS PARAGRAPH.

39 (d) REASONABLE ATTORNEY FEES AND OTHER COSTS.

40 (e) ANY OTHER RELIEF THAT THE COURT DEEMS APPROPRIATE, INCLUDING
41 REINSTATEMENT OF EMPLOYMENT, BACK PAY AND INJUNCTIVE RELIEF.

42 6. IF THE ACTION WAS BROUGHT BY THE ATTORNEY GENERAL UNDER
43 PARAGRAPH 2, SUBDIVISION (b) OF THIS SUBSECTION, THE COURT SHALL ORDER THE
44 EMPLOYER TO PAY AT LEAST \$1,000 PER VIOLATION TO THIS STATE.

45 23-382.07. Retaliatory personnel actions prohibited

46 A. IT IS UNLAWFUL FOR AN EMPLOYER OR ANY OTHER PERSON TO INTERFERE
47 WITH, RESTRAIN OR DENY THE EXERCISE OF, OR THE ATTEMPT TO EXERCISE, ANY
48 RIGHT PROTECTED UNDER THIS ARTICLE.

1 B. AN EMPLOYER, TEMPORARY HELP COMPANY, EMPLOYMENT AGENCY, EMPLOYEE
2 ORGANIZATION OR OTHER PERSON MAY NOT TAKE RETALIATORY PERSONNEL ACTION OR
3 OTHERWISE DISCRIMINATE AGAINST A PERSON BECAUSE THE PERSON EXERCISED
4 RIGHTS PROTECTED UNDER THIS ARTICLE. THESE RIGHTS INCLUDE ALL OF THE
5 FOLLOWING:

6 1. REQUESTING, FILING FOR, APPLYING FOR OR USING BENEFITS OR LEAVE
7 PROVIDED FOR UNDER THIS ARTICLE.

8 2. COMMUNICATING TO THE EMPLOYER OR ANY OTHER PERSON OR ENTITY AN
9 INTENT TO FILE A CLAIM, A COMPLAINT WITH THE COMMISSION OR COURTS OR AN
10 APPEAL.

11 3. TESTIFYING, PLANNING TO TESTIFY OR ASSISTING IN ANY
12 INVESTIGATION, HEARING OR PROCEEDING UNDER THIS ARTICLE AT ANY TIME,
13 INCLUDING DURING THE WAITING PERIOD AND THE PERIOD IN WHICH THE PERSON
14 RECEIVES FAMILY AND MEDICAL LEAVE INSURANCE BENEFITS UNDER THIS ARTICLE.

15 4. INFORMING ANY PERSON ABOUT ANY EMPLOYER'S ALLEGED VIOLATION OF
16 THIS ARTICLE.

17 5. INFORMING ANY PERSON OF A PERSON'S RIGHTS UNDER THIS ARTICLE.

18 C. IT IS UNLAWFUL FOR AN EMPLOYER'S ABSENCE CONTROL POLICY TO COUNT
19 PAID FAMILY AND MEDICAL LEAVE TAKEN UNDER THIS ARTICLE AS AN ABSENCE THAT
20 MAY LEAD TO OR RESULT IN DISCIPLINE, DISCHARGE, DEMOTION, SUSPENSION OR
21 ANY OTHER ADVERSE ACTION.

22 D. THE PROTECTIONS OF THIS SECTION APPLY TO ANY PERSON WHO
23 MISTAKENLY BUT IN GOOD FAITH ALLEGES VIOLATIONS OF THIS ARTICLE.

24 E. THERE IS A REBUTTABLE PRESUMPTION THAT AN EMPLOYER HAS VIOLATED
25 THIS ARTICLE IF THE EMPLOYER TAKES ADVERSE ACTION AGAINST AN EMPLOYEE
26 WITHIN NINETY DAYS AFTER THE EMPLOYEE DOES ANY OF THE FOLLOWING:

27 1. FILES A COMPLAINT WITH THE DIRECTOR ALLEGING A VIOLATION OF THIS
28 ARTICLE OR BRINGS A CIVIL ACTION UNDER THIS ARTICLE.

29 2. INFORMS A PERSON ABOUT THE EMPLOYER'S ALLEGED VIOLATION OF THIS
30 ARTICLE.

31 3. COOPERATES WITH THE DIRECTOR OR ANOTHER PERSON IN THE
32 INVESTIGATION OR PROSECUTION OF THE EMPLOYER'S ALLEGED VIOLATION OF THIS
33 ARTICLE.

34 4. OPPOSES A POLICY OR PRACTICE OF THE EMPLOYER OR AN ACT OF THE
35 EMPLOYER THAT IS PROHIBITED UNDER THIS ARTICLE.

36 5. TAKES OR REQUESTS LEAVE OR BENEFITS UNDER THIS ARTICLE.

37 F. AN EMPLOYER MAY OVERCOME THE REBUTTABLE PRESUMPTION ESTABLISHED
38 PURSUANT TO SUBSECTION E OF THIS SECTION WITH CLEAR AND CONVINCING
39 EVIDENCE OF ALL OF THE FOLLOWING:

40 1. THAT THE EMPLOYER'S ACTION WAS NOT RETALIATION AGAINST THE
41 EMPLOYEE.

42 2. THAT THE EMPLOYER HAD SUFFICIENT INDEPENDENT JUSTIFICATION FOR
43 TAKING THE ACTION.

44 3. THAT THE EMPLOYER WOULD HAVE IN FACT TAKEN THE ACTION IN THE
45 SAME MANNER AND AT THE SAME TIME THE ACTION WAS TAKEN, REGARDLESS OF THE
46 EMPLOYEE'S EXERCISE OF PROTECTED RIGHTS UNDER THIS ARTICLE.

1 23-382.08. Coordination of benefits

2 A. LEAVE TAKEN WITH WAGE REPLACEMENT UNDER THIS ARTICLE THAT ALSO
3 QUALIFIES AS LEAVE UNDER THE FAMILY AND MEDICAL LEAVE ACT OF 1993
4 (P.L. 103-3; 107 STAT. 6; 29 UNITED STATES CODE SECTIONS 2601 THROUGH
5 2654) SHALL RUN CONCURRENTLY WITH LEAVE TAKEN UNDER THE FAMILY AND MEDICAL
6 LEAVE ACT OF 1993 (P.L. 103-3; 107 STAT. 6; 29 UNITED STATES CODE SECTIONS
7 2601 THROUGH 2654).

8 B. A COVERED INDIVIDUAL IS NOT REQUIRED TO USE ANY ACCRUED PAID
9 SICK, VACATION OR ANNUAL LEAVE, INCLUDING SICK LEAVE UNDER SECTION 23-373,
10 OR OTHER PAID TIME OFF TO WHICH THE COVERED INDIVIDUAL IS ENTITLED BEFORE
11 OR WHILE RECEIVING FAMILY AND MEDICAL LEAVE INSURANCE BENEFITS, PROVIDED,
12 HOWEVER, THAT IF THE EMPLOYER AND THE COVERED INDIVIDUAL AGREE, A COVERED
13 INDIVIDUAL MAY ELECT TO USE ACCRUED PAID SICK, VACATION OR ANNUAL LEAVE OR
14 OTHER PAID TIME OFF TO SUPPLEMENT FAMILY AND MEDICAL LEAVE INSURANCE
15 BENEFITS UNDER THIS ARTICLE IN ORDER TO RECEIVE FULL PAY WHILE ON LEAVE.

16 C. AN EMPLOYER MAY REQUIRE THAT PAYMENT MADE PURSUANT TO THIS
17 ARTICLE BE MADE CONCURRENTLY OR OTHERWISE COORDINATED WITH PAYMENT MADE OR
18 LEAVE ALLOWED UNDER THE TERMS OF DISABILITY OR FAMILY CARE LEAVE UNDER A
19 COLLECTIVE BARGAINING AGREEMENT OR EMPLOYER POLICY. THE EMPLOYER MUST
20 GIVE EMPLOYEES WRITTEN NOTICE OF THIS REQUIREMENT.

21 D. THIS ARTICLE DOES NOT DIMINISH AN EMPLOYER'S OBLIGATION TO
22 COMPLY WITH ANY OF THE FOLLOWING THAT PROVIDE MORE GENEROUS LEAVE:

- 23 1. A COLLECTIVE BARGAINING AGREEMENT.
- 24 2. EMPLOYER POLICY.
- 25 3. ANY OTHER LAW.

26 E. AN INDIVIDUAL'S RIGHT TO LEAVE UNDER THIS ARTICLE MAY NOT BE
27 DIMINISHED BY A COLLECTIVE BARGAINING AGREEMENT ENTERED INTO OR RENEWED,
28 OR AN EMPLOYER POLICY ADOPTED OR RETAINED, AFTER THE EFFECTIVE DATE OF
29 THIS ARTICLE. ANY AGREEMENT BY AN INDIVIDUAL TO WAIVE THE INDIVIDUAL'S
30 RIGHTS UNDER THIS ARTICLE IS VOID AS AGAINST PUBLIC POLICY.

31 23-382.09. Notice; civil penalty

32 A. EACH EMPLOYER SHALL PROVIDE WRITTEN NOTICE THAT COMPLIES WITH
33 THIS SECTION:

- 34 1. TO EACH EMPLOYEE ON HIRING AND ANNUALLY THEREAFTER.
- 35 2. TO AN EMPLOYEE WHEN THE EMPLOYEE REQUESTS LEAVE UNDER THIS
36 ARTICLE.
- 37 3. TO AN EMPLOYEE WHEN THE EMPLOYER ACQUIRES KNOWLEDGE THAT THE
38 EMPLOYEE'S LEAVE MAY BE FOR A QUALIFYING REASON UNDER SECTION 23-382.01.

39 B. ANY NOTICED PROVIDED UNDER THIS SECTION SHALL INCLUDE ALL OF THE
40 FOLLOWING:

- 41 1. THE EMPLOYEE'S RIGHT TO FAMILY AND MEDICAL LEAVE INSURANCE
42 BENEFITS UNDER THIS ARTICLE AND THE TERMS UNDER WHICH IT MAY BE USED.
- 43 2. THE AMOUNT OF FAMILY AND MEDICAL LEAVE INSURANCE BENEFITS.
- 44 3. THE PROCEDURE FOR FILING A CLAIM FOR BENEFITS.
- 45 4. THE RIGHT TO JOB PROTECTION AND BENEFITS CONTINUATION UNDER
46 SECTION 23-382.06.
- 47 5. THAT DISCRIMINATION AND RETALIATORY PERSONNEL ACTIONS AGAINST A
48 PERSON FOR REQUESTING, APPLYING FOR OR USING FAMILY AND MEDICAL LEAVE
49 INSURANCE BENEFITS IS PROHIBITED UNDER SECTION 23-382.07.

1 6. THAT THE EMPLOYEE HAS A RIGHT TO FILE A COMPLAINT FOR VIOLATIONS
2 OF THIS ARTICLE.

3 7. THE CONTACT INFORMATION FOR THE COMMISSION WHERE QUESTIONS ABOUT
4 RIGHTS AND RESPONSIBILITIES UNDER THIS ARTICLE CAN BE ANSWERED.

5 C. AN EMPLOYER SHALL ALSO DISPLAY AND MAINTAIN A POSTER IN A
6 CONSPICUOUS PLACE ACCESSIBLE TO EMPLOYEES AT THE EMPLOYER'S PLACE OF
7 BUSINESS THAT CONTAINS THE INFORMATION REQUIRED BY THIS SECTION IN
8 ENGLISH, SPANISH AND ANY LANGUAGE THAT IS THE FIRST LANGUAGE SPOKEN BY AT
9 LEAST FIVE PERCENT OF THE EMPLOYER'S WORKFORCE, PROVIDED THAT SUCH NOTICE
10 HAS BEEN PROVIDED BY THE COMMISSION. THE DIRECTOR MAY ADOPT RULES TO
11 ESTABLISH ADDITIONAL REQUIREMENTS CONCERNING THE MEANS BY WHICH EMPLOYERS
12 SHALL PROVIDE SUCH NOTICE.

13 D. IN ANY CASE IN WHICH THE NECESSITY FOR LEAVE UNDER THIS ARTICLE
14 IS FORESEEABLE, THE EMPLOYEE SHALL PROVIDE THE EMPLOYER WITH AT LEAST
15 THIRTY DAYS' NOTICE BEFORE THE DATE THE LEAVE IS TO BEGIN, OR, IF SUCH
16 NOTICE IS NOT POSSIBLE, THE EMPLOYEE SHALL PROVIDE SUCH NOTICE AS IS
17 PRACTICABLE. IN ANY CASE FOR WHICH THE NECESSITY FOR LEAVE UNDER THIS
18 ARTICLE IS NOT FORESEEABLE, THE EMPLOYEE SHALL PROVIDE SUCH NOTICE AS IS
19 PRACTICABLE.

20 E. THE AMOUNT OF FAMILY AND MEDICAL LEAVE AVAILABLE TO AN EMPLOYEE
21 AND THE AMOUNT OF FAMILY AND MEDICAL LEAVE TAKEN BY AN EMPLOYEE TO DATE IN
22 THE YEAR SHALL BE RECORDED IN, OR ON AN ATTACHMENT TO, THE EMPLOYEE'S
23 REGULAR PAYCHECK.

24 F. ANY EMPLOYER THAT VIOLATES THE RECORDKEEPING, POSTING OR OTHER
25 REQUIREMENTS THAT THE COMMISSION ESTABLISHES UNDER THIS SECTION IS SUBJECT
26 TO A CIVIL PENALTY OF AT LEAST \$250 FOR A FIRST VIOLATION, AND AT LEAST
27 \$1,000 FOR EACH SUBSEQUENT OR WILFUL VIOLATION AND, IF THE COMMISSION OR
28 COURT DETERMINES APPROPRIATE, MAY BE SUBJECT TO SPECIAL MONITORING AND
29 INSPECTIONS.

30 23-382.10. Benefits appeals

31 A. THE DIRECTOR SHALL ESTABLISH A SYSTEM FOR APPEALS IN THE CASE OF
32 A DENIAL OF FAMILY AND MEDICAL LEAVE INSURANCE BENEFITS.

33 B. JUDICIAL REVIEW OF ANY DECISION WITH RESPECT TO FAMILY AND
34 MEDICAL LEAVE INSURANCE BENEFITS IS ALLOWED IN A COURT OF COMPETENT
35 JURISDICTION AFTER A PARTY AGGRIEVED BY THE DECISION HAS EXHAUSTED ALL
36 ADMINISTRATIVE REMEDIES ESTABLISHED BY THE DIRECTOR.

37 C. THE DIRECTOR SHALL IMPLEMENT PROCEDURES TO ENSURE
38 CONFIDENTIALITY OF ALL INFORMATION RELATED TO ANY CLAIMS FILED OR APPEALS
39 TAKEN TO THE MAXIMUM EXTENT ALLOWED BY APPLICABLE LAWS.

40 23-382.11. Erroneous payments and disqualification for
41 benefits

42 A. A COVERED INDIVIDUAL IS DISQUALIFIED FROM FAMILY AND MEDICAL
43 LEAVE INSURANCE BENEFITS FOR ONE YEAR IF THE INDIVIDUAL IS DETERMINED BY
44 THE DIRECTOR TO HAVE WILFULLY MADE A FALSE STATEMENT OR MISREPRESENTATION
45 REGARDING A MATERIAL FACT, OR WILFULLY FAILED TO REPORT A MATERIAL FACT,
46 TO OBTAIN BENEFITS UNDER THIS ARTICLE.

47 B. IF FAMILY AND MEDICAL LEAVE INSURANCE BENEFITS ARE PAID
48 ERRONEOUSLY OR AS A RESULT OF WILFUL MISREPRESENTATION, OR IF A CLAIM FOR
49 FAMILY AND MEDICAL LEAVE INSURANCE BENEFITS IS REJECTED AFTER BENEFITS ARE

1 PAID, THE COMMISSION MAY SEEK REPAYMENT OF BENEFITS FROM THE RECIPIENT.
2 THE DIRECTOR SHALL EXERCISE THE DIRECTOR'S DISCRETION TO WAIVE, IN WHOLE
3 OR IN PART, THE AMOUNT OF ANY SUCH PAYMENTS FOR GOOD CAUSE.

4 23-382.12. Elective coverage

5 A. A SELF-EMPLOYED PERSON, INCLUDING A SOLE PROPRIETOR, PARTNER OR
6 JOINT VENTURER, MAY ELECT COVERAGE UNDER THIS ARTICLE FOR AN INITIAL
7 PERIOD OF NOT LESS THAN THREE YEARS. THE SELF-EMPLOYED PERSON MUST FILE A
8 NOTICE OF ELECTION IN WRITING WITH THE DIRECTOR, AS REQUIRED BY THE
9 COMMISSION. THE ELECTION BECOMES EFFECTIVE ON THE DATE THE SELF-EMPLOYED
10 PERSON FILES THE NOTICE. AS A CONDITION OF ELECTION, THE SELF-EMPLOYED
11 PERSON MUST AGREE TO SUPPLY ANY INFORMATION CONCERNING INCOME THAT THE
12 COMMISSION DEEMS NECESSARY.

13 B. A SELF-EMPLOYED PERSON WHO HAS ELECTED COVERAGE MAY WITHDRAW
14 FROM COVERAGE WITHIN THIRTY DAYS AFTER THE END OF THE THREE-YEAR PERIOD OF
15 COVERAGE, OR AT SUCH OTHER TIMES AS THE DIRECTOR MAY PRESCRIBE BY RULE, BY
16 FILING WRITTEN NOTICE WITH THE DIRECTOR. THE WITHDRAWAL SHALL TAKE EFFECT
17 NOT SOONER THAN THIRTY DAYS AFTER THE SELF-EMPLOYED PERSON FILES THE
18 NOTICE.

19 23-382.13. Family and medical leave insurance program; rules

20 A. THE COMMISSION SHALL ESTABLISH AND ADMINISTER A FAMILY AND
21 MEDICAL LEAVE INSURANCE PROGRAM AND, ON OR BEFORE JANUARY 1, 2029, SHALL
22 PAY FAMILY AND MEDICAL LEAVE INSURANCE BENEFITS AS SPECIFIED IN THIS
23 ARTICLE.

24 B. THE COMMISSION SHALL ESTABLISH REASONABLE PROCEDURES AND FORMS
25 FOR FILING CLAIMS FOR BENEFITS UNDER THIS ARTICLE AND SHALL SPECIFY THE
26 SUPPORTING DOCUMENTATION THAT IS NECESSARY TO SUPPORT A CLAIM FOR
27 BENEFITS, INCLUDING ANY DOCUMENTATION REQUIRED FROM A HEALTH CARE PROVIDER
28 FOR PROOF OF A SERIOUS HEALTH CONDITION.

29 C. THE COMMISSION SHALL NOTIFY THE EMPLOYER WITHIN FIVE BUSINESS
30 DAYS AFTER A CLAIM IS FILED PURSUANT TO THIS ARTICLE.

31 D. THE COMMISSION SHALL USE INFORMATION SHARING AND INTEGRATION
32 TECHNOLOGY TO FACILITATE THE DISCLOSURE OF RELEVANT INFORMATION OR
33 RECORDS, IF AN INDIVIDUAL CONSENTS TO THE DISCLOSURE AS REQUIRED UNDER THE
34 LAWS OF THIS STATE.

35 E. INFORMATION CONTAINED IN THE FILES AND RECORDS PERTAINING TO AN
36 INDIVIDUAL UNDER THIS ARTICLE IS CONFIDENTIAL AND NOT OPEN TO PUBLIC
37 INSPECTION, OTHER THAN TO PUBLIC EMPLOYEES IN PERFORMING THEIR OFFICIAL
38 DUTIES. HOWEVER, THE INDIVIDUAL OR AN AUTHORIZED REPRESENTATIVE OF THE
39 INDIVIDUAL MAY REVIEW THE RECORDS OR RECEIVE SPECIFIC INFORMATION FROM THE
40 RECORDS ON THE PRESENTATION OF THE INDIVIDUAL'S SIGNED AUTHORIZATION.

41 F. THE DIRECTOR SHALL ADOPT RULES AS NECESSARY TO IMPLEMENT THIS
42 ARTICLE.

43 23-382.14. Federal income tax

44 IF THE UNITED STATES INTERNAL REVENUE SERVICE DETERMINES THAT FAMILY
45 AND MEDICAL LEAVE INSURANCE BENEFITS UNDER THIS ARTICLE ARE SUBJECT TO
46 FEDERAL INCOME TAX, THE COMMISSION MUST ADVISE AN INDIVIDUAL FILING A NEW
47 CLAIM FOR FAMILY AND MEDICAL LEAVE INSURANCE BENEFITS, AT THE TIME OF
48 FILING SUCH CLAIM, OF ALL OF THE FOLLOWING:

1 1. THAT THE UNITED STATES INTERNAL REVENUE SERVICE HAS DETERMINED
2 THAT BENEFITS ARE SUBJECT TO FEDERAL INCOME TAX.

3 2. THAT REQUIREMENTS EXIST PERTAINING TO ESTIMATED TAX PAYMENTS.

4 3. THAT THE INDIVIDUAL MAY ELECT TO HAVE FEDERAL INCOME TAX
5 DEDUCTED AND WITHHELD FROM THE INDIVIDUAL'S PAYMENT OF BENEFITS IN THE
6 AMOUNT SPECIFIED IN THE FEDERAL INTERNAL REVENUE CODE.

7 4. THAT THE INDIVIDUAL IS ALLOWED TO CHANGE A PREVIOUSLY ELECTED
8 WITHHOLDING STATUS.

9 23-382.15. Family and medical leave insurance fund

10 A. THE FAMILY AND MEDICAL LEAVE INSURANCE FUND IS ESTABLISHED
11 CONSISTING OF CONTRIBUTIONS RECEIVED PURSUANT TO SECTION 23-382.04 AND ANY
12 OTHER MONIES. THE COMMISSION SHALL ADMINISTER THE FUND. EXPENDITURES
13 FROM THE FUND MAY BE USED ONLY FOR THE PURPOSES OF THE FAMILY AND MEDICAL
14 LEAVE INSURANCE PROGRAM, INCLUDING CONDUCTING THE PUBLIC EDUCATION
15 CAMPAIGN PURSUANT TO SECTION 23-382.17. ONLY THE DIRECTOR OR THE
16 DIRECTOR'S DESIGNEE MAY AUTHORIZE EXPENDITURES FROM THE FUND.

17 B. WHENEVER, IN THE JUDGMENT OF THE COMMISSION, THERE IS IN THE
18 FAMILY AND MEDICAL LEAVE INSURANCE FUND AN AMOUNT OF MONIES OF MORE THAN
19 THE AMOUNT DEEMED BY THE COMMISSION TO BE SUFFICIENT TO MEET THE CURRENT
20 EXPENDITURES PROPERLY PAYABLE FROM THE FUND, THE STATE TREASURER MAY
21 INVEST, REINVEST, MANAGE, CONTRACT, SELL OR EXCHANGE INVESTMENTS ACQUIRED
22 WITH SUCH EXCESS FUNDS IN THE MANNER PRESCRIBED BY THE LAWS OF THIS STATE
23 ON NOTICE FROM THE COMMISSION.

24 23-382.16. Annual report

25 BEGINNING SEPTEMBER 1, 2029 AND EACH SEPTEMBER 1 THEREAFTER, THE
26 COMMISSION SHALL SUBMIT A REPORT TO THE GOVERNOR, THE PRESIDENT OF THE
27 SENATE AND THE SPEAKER OF THE HOUSE OF REPRESENTATIVES, AND SHALL PROVIDE
28 A COPY OF THE REPORT TO THE SECRETARY OF STATE, THAT INCLUDES ALL OF THE
29 FOLLOWING:

30 1. THE PROJECTED AND ACTUAL PROGRAM PARTICIPATION BY SECTION
31 23-382.01 CATEGORY.

32 2. THE GENDER OF THE BENEFICIARIES.

33 3. THE PREMIUM RATES.

34 4. THE FAMILY AND MEDICAL LEAVE INSURANCE FUND BALANCES.

35 5. OUTREACH EFFORTS.

36 6. FOR LEAVE TAKEN UNDER SECTION 23-382.01, PARAGRAPH 2,
37 SUBDIVISION (b), THE FAMILY MEMBERS FOR WHOM LEAVE WAS TAKEN TO PROVIDE
38 CARE.

39 23-382.17. Public education

40 THE COMMISSION SHALL CONDUCT A PUBLIC EDUCATION CAMPAIGN TO INFORM
41 EMPLOYEES AND EMPLOYERS REGARDING THE AVAILABILITY OF FAMILY AND MEDICAL
42 LEAVE INSURANCE BENEFITS. OUTREACH INFORMATION SHALL BE AVAILABLE IN
43 ENGLISH, SPANISH AND OTHER LANGUAGES SPOKEN BY MORE THAN FIVE PERCENT OF
44 THIS STATE'S POPULATION. THE COMMISSION SHALL USE MONIES FROM THE FAMILY
45 AND MEDICAL LEAVE INSURANCE FUND ESTABLISHED BY SECTION 23-382.15 TO
46 FINANCE THE PUBLIC EDUCATION CAMPAIGN.

1 23-382.18. Sharing technology
2 THE COMMISSION IS ENCOURAGED TO USE STATE DATA COLLECTION AND
3 TECHNOLOGY TO THE EXTENT POSSIBLE AND TO INTEGRATE THE FAMILY AND MEDICAL
4 LEAVE INSURANCE PROGRAM WITH EXISTING STATE POLICIES.
5 Sec. 2. Rulemaking
6 All rules necessary to implement this act shall be adopted within
7 one hundred twenty days after the effective date of this act.
8 Sec. 3. Severability
9 If a provision of this act or its application to any person or
10 circumstance is held invalid, the invalidity does not affect other
11 provisions or applications of the act that can be given effect without the
12 invalid provision or application, and to this end the provisions of this
13 act are severable.
14 Sec. 4. Short title
15 Title 23, chapter 2, article 8.2, Arizona Revised Statutes, as added
16 by this act, may be cited as the "Arizona Thriving Families Act".
17 Sec. 5. Emergency
18 This act is an emergency measure that is necessary to preserve the
19 public peace, health or safety and is operative immediately as provided by
20 law."
21 Amend title to conform

BRIAN GARCIA

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